

STIPULATED SETTLEMENT
FILED BY: CAPITAL ONE, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,507.41, plus costs, less any credits for payments received.

The Defendant made payments of \$450.

Costs are \$583.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 7/21/25.

A dismissal was entered on 10/21/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$9,641.02.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

11. 9:00 AM CASE NUMBER: L25-05088

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES LLC VS. RAFAELA ROMERO

*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: PORTFOLIO RECOVERY ASSOCIATES LLC

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint. The address was also in an attachment to the Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$1,422.01, plus costs, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$495.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 7/22/25.

A dismissal was entered on 7/22/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,917.62.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.